

25STCV19798 25STCV19798

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Case Number: 25STCV19798 Hearing Date: September 4, 2026 Dept: 307

12 TENTATIVE RULING 9:15 a.m., Friday, September 4, 2026

CHRISTOPHER

H. SANDOVAL v. FCA US LLC, et al. [25STCV19798]

DEFENDANTS

FCA US LLC AND PEDDER CHRYSLER DODGE RAM JEEP OF POWAY'S MOTION FOR JUDGMENT ON
THE PLEADINGS AS TO THE FIRST AMENDED COMPLAINT

MEET AND

CONFER: N/A Defendants'

MJOP was filed without attempting to meet and confer with Plaintiffs on the basis that the no meet and confer is required for an MJOP brought within 30 days of trial. (Mot., at p. 6, fn. 1; Code Civ. Proc., § 439, subd. (d)(4).) At the time this MJOP was filed, trial was scheduled for 8/24/2026. Defendants filed an ex parte application to specially set the MJOP on shortened notice or to continue trial, which was denied on 8/13/2026. Defendants nevertheless filed the MJOP, which was set for a date after trial. At the Final Status Conference on 8/19/2026, Plaintiffs failed to appear and the Court continued the trial date to 2/22/2027.

BACKGROUND:

Lemon law

TIMELINE:

11/12/2017: Plaintiffs Christopher H. Sandoval
and Stephanie Sandoval (collectively, "Plaintiffs") enter into a warranty

contract with Defendant FCA US LLC ("FCA") concerning a 2018 Chrysler Pacifica Hybrid (the "Vehicle"), which was manufactured and/or distributed by FCA. (FAC, Exh. A.) Thereafter, defects and nonconformities to the warranty manifest in the Vehicle, including defects resulting in stalling, shutting off, and/or loss of power of the Vehicle (the "Defects").

Unknown Date: Plaintiffs seek repairs for the Vehicle from Defendant Pedder Chrysler Dodge Ram Jeep of Poway ("Pedder") on at least one occasion.

6/30/2025: Plaintiffs file the Complaint. The operative First Amended Complaint ("FAC"), filed 9/29/2025, alleges causes of action for:

1. Violation of Civ. Code § 1793.2, subd. (d) 22
2. Violation of Civ. Code § 1793.2, subd. (b) 22
3. Violation of Civ. Code § 1793.2, subd. (a)(3) 22
4. Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, & 1795.5) 22
5. Negligent Repair 22
6. Fraudulent Inducement-Concealment 22

8/12/2026: FCA and Pedder (collectively, "Defendants") file this Motion for Judgment on the Pleadings, which is followed by Plaintiffs' Opposition (8/24/2026) and Defendants' Reply (8/28/2026).

TENTATIVE

RULING: DEFENDANTS FCA US LLC AND PEDDER CHRYSLER DODGE RAM JEEP OF POWAY'S MOTION FOR JUDGMENT ON THE PLEADINGS AS TO THE FIRST AMENDED COMPLAINT is GRANTED with LEAVE TO AMEND.

I. MOTION

FOR JUDGMENT ON THE PLEADINGS

Defendants move for judgment on the pleadings
as to each cause of action in the FAC on the grounds that Plaintiffs fail to
plead sufficient facts to state a claim against Defendants as a matter of law.

A.

1st

through 4th Cause of Action: Song-Beverly Act Claims – GRANTED with
LEAVE TO AMEND

Plaintiffs'

first through fourth causes of action against FCA are time-barred by the six-year
statute of repose under Code Civ. Proc., § 871.21, subd. (b) ("section 871.21").
Section 871.21 provides, in relevant part, "an action covered by Section
871.20 shall not be brought later than six years after the date of
original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd.
(b).) Code Civ. Proc., § 871.20 ("section 871.20") identifies the causes of
action which are governed by section 871.21, stating in relevant
part: ۰۰۰

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(a) [T]his chapter applies to an
action, brought against a manufacturer who has elected under Section 871.29 to
proceed under this chapter, seeking restitution or replacement of a motor
vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22,
or Section 1794 of the Civil Code, or for civil penalties pursuant to
subdivision (c) of Section 1794 of the Civil Code, where the request for
restitution or replacement is based on noncompliance with the applicable
express warranty. ۰۰۰

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(b) This chapter does not apply to
service contract claims under Section 1794 of the Civil Code or any action
seeking remedies that are not restitution or replacement of a motor vehicle. ۰۰۰

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(Code

Civ. Proc., § 871.20.)² Here,

Plaintiffs' Song-Beverly claims are each identified under section 871.20, and therefore, each claim is governed by the statute of repose under section 871.21, subd. (b).^[1]

In this case, Plaintiffs allege that they entered into a vehicle warranty contract with FCA on November 12, 2017. (FAC, ¶¶ 8-9.) While Plaintiffs do not specifically identify when they purchased the Vehicle, it can reasonably be inferred that the Vehicle was delivered to Plaintiffs on or around the date that they received FCA's written warranty. Absent tolling, the deadline to pursue claims governed by section 871.21, subd. (b) would have expired six years later, on or around November 12, 2023. Nevertheless, Plaintiffs did not file this lawsuit until June 30, 2025, over 18 months after the expiration of the statute of repose. While section 871.21, subd. (c) does provide some limited tolling exceptions to section 871.21's limitations periods, Plaintiffs have not alleged facts to establish that any of these narrow tolling exceptions apply here. At most, Plaintiffs generally allege that various other tolling doctrines apply here, but these allegations are largely conclusory and fail to demonstrate the application of the limited tolling doctrines under section 871.21, subd. (c) in particular. (FAC, ¶¶ 38-54.) Thus, the Court finds that Plaintiffs' first four causes of action are time barred under section 871.21, subd. (b).

While Plaintiffs argue that the retroactive application of section 871.21 is a violation of due process, the Court is not persuaded. "[A] statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application." (McClung v. Emp. Dev. ²Dep't (2004) 34 Cal.4th 467, 475.)² Here, Code Civ. Proc., § 871.30, subd. (a) expressly permits a vehicle manufacturer to elect to be governed by Chapter 12 for all actions described in section 871.20, subd. (a) "with respect to all of its motor vehicles sold in the year 2025² and in all prior years² by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs."² (Code Civ. Proc., § 871.30, subd. (a), italics added.) Thus, once FCA opted-in pursuant to Code Civ. Proc., § 871.29, Plaintiffs' Vehicle would have been subject to this statutory framework.² (Code Civ. Proc., § 871.30; see RJN, Exh. 3.) Moreover, the application of section 871.21's statute of repose to Plaintiffs' Song-Beverly claims (which were filed over six years after they

purchased their Vehicle) is consistent with the general policies underlying a statute of repose. (*Burroughs v. Precision Airmotive Corp.*, (2000) 78 Cal.App.4th 681, 689; “A statute of repose is a legal recognition that, after an extended period of time, a product has demonstrated its safety and quality, and that it is not reasonable to hold a manufacturer legally responsible for an accident or injury occurring after that much time has elapsed.”.) Accordingly, Plaintiffs fail to demonstrate that section 871.21 should not apply retroactively to categorically bar their Song-Beverly claims.

Even to the extent that Plaintiffs assert that their implied warranty of merchantability claim should not be governed by the Song-Beverly framework, their fourth cause of action is nonetheless time-barred under Comm. Code § 2725. “[T]he statute of limitations for an action for breach of warranty under the Song–Beverly Act is four years pursuant to section 2725 of the Uniform Commercial Code.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306.) Under this section, “[a] cause of action accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Comm. Code, § 2725, subd. (2), italics added; see *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 211.) “Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods’” (*Cardinal Health 301, Inc. v. Tyco Electronics Corp.*, (2008) 169 Cal.App.4th 116, 134, citing Comm. Code § 2725, subd. (2), italics added.) Thus, the statute of limitations for an implied warranty of merchantability claims begins to run upon tender of delivery. As applied here, Plaintiffs’ fourth cause of action accrued at the time that the Vehicle was delivered (in November 2017) and expired four years later in November 2021. (FAC, ¶ 8.)

Accordingly, the Court concludes that Plaintiffs’ first through fourth causes of action, as currently pled in the FAC, are necessarily time-barred.

B.

5th

Cause of Action: Negligent Repair – GRANTED with LEAVE TO AMEND

Plaintiffs'

fifth cause of action for negligent repair against Pedder is not sufficiently pled. To plead a claim for negligent repair, "the complaint must allege facts sufficient to show a legal duty on the part of the defendant to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury." (Bellah v. Greenson (1978) 81 Cal.App.3d 614, 619.)

Here,

Plaintiffs allege that they delivered the Vehicle to Pedder for "substantial repair on at least one occasion." (FAC, ¶ 75.) Plaintiffs generally allege that Pedder "owed a duty to Plaintiffs to use ordinary care and skill in storage, preparation and repair" of the Vehicle "in accordance with industry standards," and breached said duty by failing to do so. (Id. ¶¶ 75-76.) Plaintiffs further allege that Pedder's "negligent breach" of this duty was a "proximate cause of Plaintiffs' damages." (Id. ¶ 78.) These vague and conclusory allegations provide no facts as to what Pedder allegedly did or failed to do, such that Pedder has inadequate notice of how it purportedly acted in a negligent manner. Even if these general allegations of duty and breach are sufficient, Plaintiffs have not identified any facts identifying the nature, type, and scope of the injury that they sustained as a result of Pedder's conduct. Without more factual details as to how Pedder acted negligently, Pedder cannot reasonably be expected to infer how its acts or omissions caused Plaintiffs to suffer an injury.¿

Moreover, to the extent that the alleged repairs to the Vehicle were made pursuant to a service contract, if any, Plaintiffs' negligent repair claim is barred by the economic loss rule. (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922 ["In general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage."].) Here, the FAC does not state whether Pedder agreed to perform services on the Vehicle pursuant to a contractual arrangement or whether FCA's warranty applied to the repairs sought from Pedder. Even so, it can reasonably be inferred that the parties contracted for the provision of service to the Vehicle to some degree. The FAC does not identify any duty which arises independently from Pedder's agreement to perform

services on the Vehicle that would give rise to tort liability for Pedder's negligence. Instead, Plaintiffs simply allege that Pedder provided such services in a negligent manner. (FAC, ¶ 77.) As Plaintiffs fail to: (1) establish any duty owed by Pedder independent from the agreement to perform services on the Vehicle or FCA's written warranty, (2) identify whether Plaintiffs suffered any non-economic damages because of Pedder's conduct, or (3) allege facts suggesting that some exception to the economic loss rule applies here, Plaintiffs' negligent repair claim is necessarily barred by the economic loss rule.ç

Accordingly, the Court concludes that Plaintiffs fail to state a claim against Pedder for negligent repair.

C.

6th

Cause of Action: Fraudulent Inducement-Concealment – GRANTED with LEAVE TO AMEND

Defendants

move for judgment on the pleadings as to Plaintiffs' sixth cause of action on the grounds that: (1) Plaintiffs fail to plead fraud with the requisite level of specificity and (2) Plaintiffs have not alleged adequate facts to establish a transactional relationship with FCA.

First, Plaintiffs

have not overcome the heightened pleading standard for fraud claims. Fraud, including concealment, must be pled specifically, and "general and conclusory allegations do not suffice." (Lazar v. Superior Court (1996) 12

Cal.4th 631, 645.) "California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim." (Rattagan v. Uber Technologies, Inc. (2024) 17

Cal.5th 1, 43 (Rattagan).) Additionally, "[t]he requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (Tarmann v. State Farm Mut. Auto. Ins. Co. (1991) 2 Cal.App.4th 153, 157.)ç

Here, Plaintiffs allege that FCA committed fraud by

allowing the Vehicle to be sold to Plaintiffs without disclosing that the Vehicle's Defects, despite FCA's knowledge of the Defects. (FAC, ¶¶ 17, 19, 21, 80-81.) The issue with this cause of action is that Plaintiffs have not identified the specific false representations and/or omissions about the Vehicle made by FCA before or during the sale to Plaintiffs in particular or with respect to Plaintiffs' Vehicle in particular. At most, Plaintiffs vaguely allege they "interacted with sales representatives, considered [] FCA's advertisement[s], and/or other marketing materials concerning the [] Vehicle[]" prior to making their purchase. (Id. ¶ 22.) These facts fail to provide enough factual detail to clarify the nature, scope, or source of the purported fraud. For example, Plaintiffs do not identify the names or positions of the specific sales representatives with whom they spoke, where or when they spoke to the representatives, or their authority to speak on behalf of FCA. Further, Plaintiffs also fail to identify the specific types of advertising materials they reviewed, when they reviewed such materials, or whether the materials made specific representations regarding the specific Vehicle model or its defective components. Without more facts describing the contents of the communications made to Plaintiffs on behalf of FCA, FCA cannot reasonably identify the specific nature or source of the facts concealed from Plaintiffs.

Second, Plaintiffs fail to adequately demonstrate that FCA owed Plaintiffs a duty to disclose the Defects. A "duty to disclose" arises based on "a preexisting relationship between the parties, such as 'between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.'" (Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884, 901-902 (Bjoin), quoting Rattagan, supra, ¶ 17 Cal.5th at pp. ¶ 40-41; see LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337.) "All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances." (Ibid.) "Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (Bjoin, supra, ¶ 113 Cal.App.5th at pp. ¶ 901-902, quoting Rattagan, supra, ¶ 17 Cal.5th at pp. ¶ 40-41; see BiglerEngler v. Breg, Inc. (2017) 7 Cal.App.5th 276, ¶ 321.)

Here, Plaintiffs

have not demonstrated that FCA's written warranty, standing alone, is sufficient to demonstrate the type of "direct dealings" necessary to create a transactional relationship between FCA and Plaintiffs. Plaintiffs do not allege any facts to suggest that FCA was directly involved in the marketing or sale of the Vehicle to Plaintiffs in particular (as opposed to the public at large) that would have created a transaction between Plaintiffs and FCA or its agents. Plaintiffs do not even specifically identify where they purchased the Vehicle, whether FCA financed or profited from the sale, or that FCA was a party to the sale contract. Without facts demonstrating that FCA was involved in a transactional relationship with Plaintiffs regarding the sale of the Vehicle, Plaintiffs cannot demonstrate that FCA had a duty to disclose the Defects to Plaintiffs. (See *Chital v. Nissan North America, Inc.*, (2022) 84 Cal.App.5th 828, 844 [finding that a transactional relationship was sufficiently pled where "plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers."].)

Accordingly, the Court finds that Plaintiffs fail to state a claim for fraudulent inducement-concealment against FCA.

Therefore, Defendants' motion for judgment on the pleadings as to the entire FAC is GRANTED. In light of California's liberal policy favoring amendment of pleadings and considering that this is only Defendants' first substantive challenge to the pleadings, with Court will permit leave to amend with respect to each cause of action to the extent that Plaintiffs are able to state a claim.

II. REQUESTS FOR JUDICIAL NOTICE

Defendants request judicial notice of the following documents: (1) California Assembly Journal, 2023-2024 Rec. No. 28 (RJN, Exh. 1); (2) California Legislative Counsel's Digest (dated 12/2/2025) (RJN, Exh. 2); (3) California Department of Consumer Affairs List of Manufacturers That Opted In To New Lemon Law Procedures (RJN, Exh. 3); and (4) Senate Judiciary Analysis of AB

1755 (dated 8/26/2024) (RJN, Exh. 4). The Court takes judicial notice of Exhibit 3 pursuant to Evidence Code § 452, subds. (c) and (h). The Court declines to take judicial notice of Exhibits 1, 2, and 4, finding them unnecessary for the Court to reach a legal conclusion on the instant motion.

Defendants FCA US LLC and Pedder Chrysler Dodge Ram Jeep of Poway to serve notice of ruling. This tentative ruling ("TR") shall be the order of the Court unless changed at the hearing and shall by this reference be incorporated into the Minute Order.

TR
emailed to counsel and posted to court website on 9/3/26 at 1:15 p.

[1] First, Plaintiffs' first and second causes of action are brought under Civ. Code §§ 1793.2, subds. (d) and (b), which are expressly covered by the language of section 871.20, subd. (a). Second, Plaintiffs' third cause of action is brought under Civ. Code § 1793.2, subd. (a)(3) and seeks to enforce FCA's express warranties under this section via civil penalties pursuant to Civ. Code § 1794, subd. (c). (FAC, ¶ 68.) Claims for the enforcement of warranties under Civ. Code § 1794, subd. (c) explicitly fall within the covered claims defined by section 871.20, subd. (a). Third, Plaintiffs' fourth cause of action for Breach of the Implied Warranty of Merchantability is brought under Civ. Code §§ 1791.1, 1794, and 1795.5. (FAC, ¶¶ 70-71, 73.) Again, claims brought under Civ. Code § 1794 explicitly fall within the claims covered by section 871.20, subd. (a).